

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Theodore C. Zayner
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: August 7, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

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https://www.scsccourt.org/general_info/court_reporters.shtml.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	21PR191181	Schwartz Family Trust	See Line 1 for tentative ruling.
LINE 2	25PR199806	Estate of Azmy Ibrahim	See Line 2 for tentative ruling.
LINE 3			
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9:01 LINE 1			

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Calendar Line 1

Case Name: *Estate of Azmy Ibrahim*

Case No.: 25PR199806

The above-entitled action comes on for hearing before the Honorable Theodore Zayner on August 7, 2026, at 10:00 a.m. in Department 13. Having reviewed and considered the written submissions of the parties and being fully advised, the Court now orders as follows:

INTRODUCTION

On April 18, 2025, Shereen Jarrett (“Petitioner”) initiated this action by filing a petition for letters of administration to administer the estate of her father, Azmy Ibrahim (“Decedent”). Decedent’s surviving spouse, Esther Alliota (“Objector”) opposed Petitioner’s petition and filed her own competing petition for letters of administration.

Currently before the court is Objector’s motion to compel further responses from Petitioner to her requests for production of documents, set one; requests for admission, set one; form interrogatories, set one; and special interrogatories, set one. Petitioner has opposed the motion¹ and Objector has filed a reply.

DISCUSSION

I. Legal Background

A. Requests for Production

A responding party to an inspection demand must respond separately to each item in the demand by stating one of the following: (1) an agreement to comply; (2) a representation of inability to comply, or (3) objections. (Code Civ. Proc., § 2031.210.) Additionally, Code of Civil Procedure section 2031.230 requires that a representation of an inability to comply with the particular demand for inspection must also “affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with the demand.” If a party demanding a response to an inspection demand deems: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or

¹ The court notes that Petitioner also appears to have filed her own discovery requests. They bear a hearing date of August 7, 2026, the same date as the instant motion to compel. Petitioner has not filed a motion, nor has she secured a hearing date with the court. Accordingly, the court does not address Petitioner’s discovery requests.

(3) an objection in the response is without merit or too general, that party may move for an order compelling further response to the demand. (Code Civ. Proc., § 2031.310, subd. (a).)

In general, a motion for an order compelling further responses to requests for production of documents “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) In order to establish good cause, the burden is on the moving party to show relevance to the subject matter and specific facts justifying the discovery. (See *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once a showing of good cause is made, the burden shifts to the opposing party to justify his or her objections. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

B. Requests for Admission

“On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

C. Interrogatories

A responding party must provide non-evasive answers to interrogatories that are “as complete and straightforward...to the extent possible,” and, if after a reasonable and good faith effort to obtain the information they still cannot respond fully to an interrogatory, the responding party must so state in its response. (Code Civ. Proc., § 2030.220.) If the responding party provides incomplete or evasive answers, or objections without merit, the propounding party’s remedy is to seek a court order compelling a further response to the interrogatories. (Code Civ. Proc., § 2030.300.)

II. Merits of the Motion

In her initial responses, Petitioner responded to each of Objector’s requests for production, requests for admission, and form and special interrogatories with the same response: “Esther Ying Aliotta filed and said there were no assets, Esther Ying Huang Aliotta and her attorneys have blocked all my requests to my own family records. I served her through

her attorneys with interrogatories, asking about all the assets. Esther Ying Aliotta and her representing attorneys, have refused to answer. Without their answer, I cannot know how to respond because it's unintelligible and in bad faith.” After Objector filed the instant motion, Petitioner served supplemental responses to the requests for admission and form and special interrogatories. She did not serve supplemental responses to the requests for production.

As to the discovery requests other than the requests for production, Objector contends that the responses remain insufficient because they are evasive and consist primarily of objections that have been waived. The failure to assert a specific objection in an initial discovery response waives that particular objection. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125, citing *Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1141.) Here, Petitioner's initial responses stated only that she could not respond to the discovery requests because she did not have access to certain records and she needed Objector to respond to discovery first. This did not preserve all of the objections Petitioner raises in her supplemental discovery responses. Moreover, Petitioner has not attempt to defend her objections in her opposition to the motion. (*Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220-221 [If a timely motion to compel is filed, the burden is on the responding party to justify any objection or failure to fully answer the discovery requests other than requests for production.].) Accordingly, Petitioner must serve amended responses with all objections removed.

As to the requests for production, Objector has shown good cause for the further responses she seeks. Specifically, the requests pertain either to Petitioner's responses to Objector's special interrogatories or to issues raised in this case. The parties' dispute centers around whether Decedent died with any probate assets or whether all assets pass outside of probate and who should be appointed as administrator if probate administration is necessary. Here, the requests for production generally request documents related to these questions. At the same time, the responses do not comply with the Civil Discovery Act. As mentioned above, a party responding to an inspection demand must respond separately to each item in the demand by stating one of the following: (1) an agreement to comply; (2) a representation of inability to comply, or (3) objections. (Code Civ. Proc., § 2031.210.) Here, any objections not previously

raised are waived. Accordingly, Petitioner must serve supplemental responses that state whether she will comply or whether she lacks the ability to comply. Code of Civil Procedure section 2031.230 requires that a representation of an inability to comply with the particular demand for inspection must also “affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with the demand.”

The motion to compel further responses is GRANTED. Petitioner must serve objection-free, code-compliant further responses to Objector’s requests for production, set one; requests for admission, set one; form interrogatories, set one; and special interrogatories, set one, within 30 days of the date of the court’s final order on this matter.

Objector also requests sanctions in the amount of \$5,100, consisting of \$5,040 in attorney fees (nine hours of attorney time at \$560 per hour), plus a \$60 filing fee. The statutes governing the instant motion provide for mandatory sanctions against a party unsuccessfully opposing such a motion, unless the court finds that “the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (See §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

Petitioner contends that the court should not order sanctions because the motion is moot due to her service of supplemental responses. But, the court retains jurisdiction to order sanctions under these circumstances. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408-409.) Petitioner also argues that she acted with substantial justification and that her “delayed verification” is a result of an oversight rather than a willful failure to comply. Here, Petitioner responded to all of the discovery requests at issue with the same blanket response, providing no information whatsoever and did not file supplemental responses until after Objector made her motion to compel. Petitioner provides no justification for such actions. The court notes, however, that “the unjust exception ‘may excuse monetary sanctions where the party to be sanctioned is impoverished and monetary sanctions would cause a hardship disproportionate to the discovery misuse.’ [Citation.]” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 77.) Petitioner maintains that she lacks the funds to pay sanctions and that the imposition of sanctions would constitute “extreme financial oppression and a miscarriage of justice.” Here,

the discovery abuse, while unjustified is not so severe that sanctions are warranted under the circumstances.² The request for sanctions is DENIED.

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CONCLUSION

Objector's motion to compel is GRANTED. Petitioner must serve objection-free, code-compliant further responses to Objector's requests for production, set one; requests for admission, set one; form interrogatories, set one; and special interrogatories, set one, within 30 days of the date of the court's final order on this matter. Objector's request for sanctions is DENIED.

Moving party shall prepare the Order.

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² The court notes that Petitioner has provided no evidence of the alleged financial hardship. But, her opposition is signed under penalty of perjury. Accordingly, for the purposes of this motion, the court accepts Petitioner's representations. Nonetheless, the court will consider imposing sanctions if the discovery abuse continues.

Calendar Line 2

Case Name: *Schwartz Family Trust*

Case No.: 21PR191181

The above-entitled action comes on for hearing before the Honorable Theodore Zayner on August 7, 2026, at 10:00 a.m. in Department 13. Having reviewed and considered the written submissions of the parties and being fully advised, the Court now orders as follows:

INTRODUCTION

On October 5, 2021, Petitioner Cindy Schwartz (“Petitioner”) initiated this action by filing a petition to remove the trustees of the Schwartz Family Trust (“the trust”), Paula Block Susan Friedman, and Betsy Schwartz (“Trustees”).³ On April 4, 2022, Trustees filed an objection to Petitioner’s petition. On June 9, 2022, Petitioner filed an amended petition and on June 17, 2022, Trustees filed an amended objection. On June 20, 2022, Petitioner filed a document titled “Petitioner’s Petition to Remove Trustees from the Schwartz Family Trust.”

On June 30, 2022, the court (Hon. Jacqueline Arroyo) held a hearing and took the matter under submission. The court issued its written order denying Petitioner’s petition to remove Trustees for lack of evidentiary support on September 29, 2022.

Between October 12, 2022 and June 20, 2024, Petitioner filed a plethora of documents, some purporting to appeal the court’s September 29, 2022 order and some purporting to be objections to that same order. None of these were noticed for hearing. Petitioner also filed two requests for dismissal of her “petition” on March 14, 2024 and January 14, 2025. Both requests were denied, the first because it was unclear which petition Petitioner was referring to and the other because the court had already denied the petition to remove trustees.

On August 7, 2025, Petitioner filed an untimely motion for reconsideration of the court’s September 29, 2022 order. The motion was denied via written order filed September 11, 2025. Petitioner filed a notice of appeal but the appeal, which had been assigned docket number H053863, was abandoned.

³ Betsy Schwartz passed away in 2024.

Currently before the court is Trustees’ motion to declare Petitioner a vexatious litigant. They seek an order that Petitioner must furnish security in the instant case as well as a prefiling order. Petitioner opposes the motion.⁴

DISCUSSION

I. Legal Framework for Vexatious Litigant Motion

Before a person can be declared a vexatious litigant he or she is “entitled to a noticed motion, and a hearing which includes the right to oral argument and the presentation of evidence.” (*Bravo v. Ismaj* (2002) 99 Cal.App.4th 211, 225 (*Bravo*); Code Civ. Proc., § 391.2.)⁵ “When considering a motion to declare a litigant vexatious, the court must weigh the evidence to decide whether the litigant is vexatious based on the statutory criteria and whether the litigant has a reasonable probability of prevailing. [Citation.] To be declared a vexatious litigant, the plaintiff must come within one of the definitions of section 391, subdivision (b). [Citation.]” (*Goodrich v. Sierra Vista Regional Medical Center* (2016) 246 Cal.App.4th 1260, 1265.)

“Any determination that a litigant is vexatious must comport with the intent and spirit of the vexatious litigant statute. The purpose of which is to address the problem created by the persistent and obsessive litigant who constantly has pending a number of groundless actions and whose conduct causes serious financial results to the unfortunate objects of his or her attacks and places an unreasonable burden on the courts. [Citations.] Therefore, to find that a litigant is vexatious, the trial court must conclude that the litigant[’]s actions are unreasonably impacting the objects of appellant’s actions and the courts as contemplated by the statute.” (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 970-971.)

II. Merits of the Motion

⁴ On July 27, 2026, Trustees filed a declaration and, on August 3, 2026, Petitioner filed a responsive declaration. It is not clear to the court whether the declaration and responsive declaration are meant to be considered with the motion. Because Trustees’ declaration indicates that it is meant to respond to documents filed by Petitioner for an August 12, 2026 hearing, the court concludes that Trustees’ July 27 declaration and Petitioner’s August 3 responsive declaration are not meant to be considered with the motion.

⁵ All further undesignated statutory references are to the Code of Civil Procedure.

Trustees seek an order declaring Petitioner a vexatious litigant, requiring a Petitioner to post security, and requiring Petitioner to seek permission before filing further litigation.

“In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.” (§ 391.1, subd. (a).)

Trustees also seek a prefiling order under section 391.7, subdivision (a), “which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.” Declaring a person a vexatious litigant under section 391.7 does not require a pending proceeding, (see *Bravo, supra*, 99 Cal.App.4th at p. 222), nor does it require that the vexatious litigant be a plaintiff if it does occur in a pending proceeding (*In re Marriage of Deal* (2020) 45 Cal.App.5th 613, 621 [rejecting the argument that a court may only declare a plaintiff a vexatious litigant as a matter of law]).

Under section 391, subdivision (b)(2), a person may be found vexatious if “[a]fter a litigation has been finally determined against the person, [the person] repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.” (§ 391, subd. (b)(2).) Section 391, subdivision (b)(3) provides that a person is a vexatious litigant who “[i]n any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.”

“ ‘Litigation’ means any civil action or proceeding, commenced, maintained or pending in any state or federal court.” (§ 391, subd. (a).) “A litigation includes an appeal or civil writ proceeding filed in an appellate court. [Citations.] A litigation is finally determined adversely to a plaintiff if he does not win the action or proceeding he began, including cases that are voluntarily dismissed by a plaintiff. [Citations.]” (*Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 406-407.)

The court finds the instant motion and its supporting paperwork to be underdeveloped and lacking in both argument and supporting evidence. (See *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 51-52 [where motion for leave to intervene was supported by deficient memorandum and no declarations, trial court was justified in denying the motion on procedural grounds]; see also *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [trial court not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”].) For example, Trustees assert, “On September 29, 2022, this Court entered an order determining:” but they do not state what the court determined. Notably, the September 29, 2022 order denied Petitioner’s petition to remove Trustees from their position as trustees. Trustees assert that Petitioner attempted to relitigate this order, but they point to no specific filings in the record that attempted to do so. While the court notes that Petitioner did file an untimely motion for reconsideration of the September 29, 2022 order, that one attempt at reconsideration is insufficient to establish that Petitioner “repeatedly” attempt to relitigate the outcome of the order. Moreover, Trustees’ evidence provided with the motion consists of two court orders, including the September 9, 2022 order, a declaration filed by Petitioner, and listings of court documents, without any discussion of whether they concern the same subject matter addressed in the orders. Accordingly, Trustees have not shown that Petitioner is a vexatious litigant within the meaning of section 391 and the motion is DENIED.

III. CONCLUSION

Trustees’ motion is DENIED. Nonetheless, Petitioner is admonished that repeated attempts at relitigation of issues already decided or repeated filing of unmeritorious motions

may result in a vexatious litigant designation. Trustees may renew their motion if such repeated unmeritorious filing occurs.

Moving party shall prepare the Order.

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